

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 13, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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100	Yu vs. Kaiser Permanente, 23-01361330	Petitioner/Defendant, Southern California Permanente Medical Group, erroneously sued and served as Kaiser Permanente ("SCPMG"), requests that the court confirm the arbitration award and enter judgment according to it. No opposition has been filed. Here, the arbitration award granting SCPMG's motion for judgment on the pleadings and entering judgment in Petitioner's favor was served on October 16, 2025. (Attachment 8(c) to Petition.) The instant Petition was filed on February 4, 2026, such that it was filed within four years from the date of service of a signed copy of the arbitration

		award upon the SCPMG and at least ten days after service of the award upon the SCPMG. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc. § 1285; <i>see Cinel v Christopher</i> (2012) 203 Cal.App.4th 759, 765 [prevailing party in arbitration may petition court to confirm award, while losing party may petition to modify or vacate award entirely].) The moving party has the burden of proving the existence of the award as well as a valid arbitration agreement. (<i>Toal v. Tardif</i> (2009) 178 Cal.App.4th 1208, 1223.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it correct the award and confirms it as corrected, vacates the award or dismisses the proceeding. (Code Civ. Proc. § 1286.) The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (Code Civ. Proc. § 1285.) It must also: (a) set forth the substance of or attach a copy of the arbitration agreement; (b) set forth the name of the arbitrators; and (c) set forth or attach a copy of the award and the written opinion of the arbitrators, if any. (Code Civ. Proc. § 1285.4.) "If the award is confirmed, judgment shall be entered in conformity therewith. The judgment so entered has the same force and effect as, and is subject to all the provisions of law relating to, a judgment in a civil action of the same jurisdictional classification; and it may be enforced like any other judgment of the court in which it is entered, in an action of the same jurisdictional classification." (Code Civ. Proc. § 1287.4.) Here, the instant Petition names as respondents all parties to the arbitration (Petition, ¶ 1), attaches a copy of the arbitration agreement (Attachment 4(b)), sets forth the name of the arbitrator (Petition, ¶ 6), and attaches a copy of the award and the written opinion of the arbitrator (Attachment 8(c).) As such, SCPMG has met its burden to prove the existence of the award as well as a valid arbitration agreement. The Court GRANTS the Petition and confirms the arbitration award. SCPMG to prepare and submit proposed judgment. t
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102	The Standard Fire Insurance Company vs. Milton Roy Company, Hartell Division, 25-01473457	<u>PRO HAC VICE</u> The unopposed applications of attorneys (1) Ryan C. Edwards and (2) Taylor S. Lovejoy to appear pro hac vice on behalf of Defendant Milton Roy, LLC are GRANTED. Moving attorney met the requirements of California Rules of Court, rule 9.40. <i>Moving attorney to give notice.</i> <u>MOTION TO COMPEL DEPO</u> Plaintiff The Standard Fire Insurance Company ("Plaintiff") moves to compel Defendant Viking Range, LLC's representative Michael Lacombe to appear for a deposition. Plaintiff also asks for monetary sanctions in the amount of \$561.65 against Viking Range, LLC's attorney, Sierra J. Chinn-Liu, Esq., for the reasonable costs and fees associated with having to bring this motion. The Motion is made pursuant to Code of Civil Procedure section 2025.450, et seq. and 2023.030(a). Defendant Viking Range, LLC ("Defendant") oppose the motion. The Motion is CONTINUED TO September 3, 2026 at 1:30 p.m. The Court finds that whether Mr. Lacombe signed the verification to Defendant's discovery responses is of great significance to the issues presented in this motion. However, Plaintiff has not provided any admissible evidence that Mr. Lacombe signed a discovery verification in defense of this case. Plaintiff also did not provide admissible evidence that Mr. Lacombe appeared at destructive testing on Defendant's behalf. Plaintiff is ordered to file evidence establishing that Mr. Lacombe signed the verification on behalf of Defendant and any other evidence supporting Mr. Lacombe's role and/or responsibilities in relation to Defendant no later than 9 court days before the continued hearing. Defendant is permitted to file a 3 page reply in addition to evidence opposing Plaintiff's contentions no later than 5 court days before the continued hearing. If Plaintiff's statement is true, that Mr. Lacombe signed the discovery verification on behalf of Defendant in defense of this case, the Court strongly encourages the parties to work